Genuine Steps Certificate

Central Practice Direction – Family Law Case Management

Please type or print clearly. Attach extra pages if you need more space to answer any questions.

Note: This document must be filed at the same time as an *Initiating Application* or *Response to Initiating Application*. **Failure to comply with the relevant pre-action procedures may result in the application being stayed.**

Filed on behalf of: Stephen Christopher Cooke

(specify full name of party)

COURT USE ONLY

Client ID _____ _____

File number

Filed at NEWCASTLE

Filed on

Court location

Part A About the parties

APPLICANT 1

Family name as used now

Cooke

Given names

Stephen Christopher

RESPONDENT 1

Family name as used now

Cooke

Given names

Heather Anne

If you are the **applicant**, please complete **Parts A, B and D** of this form.

If you are the **respondent**, please complete **Parts A, C and D** of this form.

Filed on behalf of: The Applicant

Prepared by Samantha Jane Miller Lawyer's Code CLA7584701

Name of law firm (if applicable) Clarity Lawyers

Address for service in Australia T & G Building, Level 4, 45 Hunter Street

State NSW Postcode 2300

Tel (02) 4023 5553 Email samantha@claritylawyers.com.au

Part B — Pre-Action Procedures and Genuine Steps (to be completed by the applicant)

Note: See Schedule 1 of the Rules for the required pre-action procedures, and rule 4.01(2) for exemptions from compliance with the pre-action procedures.

1. I, the applicant, have read and understood the **pre-action procedures**: ☒ Yes ☐ No

2. I, the applicant, have complied with the following pre-action procedures: *(Tick all that apply)*

   ☐ Given a copy of the pre-action procedures to all other parties to the proceeding

   ☐ Made inquiries about available **dispute resolution services**

   ☒ Invited the other party/ies to participate in **dispute resolution**

   ☐ Participated in **dispute resolution** with the other party/ies

   ☐ Given the other party/ies **written notice** of their intention to start proceedings

   ☐ Cooperated with the other party/ies to agree on an appropriate dispute resolution service

   ☐ Exchanged copies of **relevant documents** with the other party/ies

3. I, the applicant, have taken **genuine steps** to resolve the dispute before filing the *Initiating Application*: ☒ Yes ☐ No ☐ It is not safe to do so

Note: you must explain why it is not safe for you to comply with the pre-action procedures in the affidavit filed in support of your *Initiating Application*.

4. I, the applicant, am seeking an exemption from either or both of (2) and (3) for the following reason/s: *(Tick all that apply)*

   ☐ There are allegations of child abuse or family violence or risk of child abuse or family violence

   ☒ My application is urgent

   ☐ I would be unduly prejudiced if required to complete the pre-action procedures

   ☐ A previous family law application has been filed by one of the parties in the last 12 months

Note: you must provide the factual basis for the exemption sought in the affidavit filed in support of your *Initiating Application*.

Part C Pre-Action Procedures and Genuine Steps (to be completed by the respondent)

Note: See Schedule 1 of the Rules for the required pre-action procedures, and rule 4.01(2) for exemptions from compliance with the pre-action procedures.

1. I, the respondent, have read and understood the **pre-action procedures**: ☐ Yes ☐ No

2. I, the respondent, have complied with the following pre-action procedures: *(Tick all that apply)*

   ☐ Cooperated with the other party/ies to agree on an appropriate **dispute resolution services**

   ☐ Participated in **dispute resolution** with the other party/ies

   ☐ Exchanged copies of **relevant documents** with the other party/ies

   ☐ Responded to the other party/ies **written notice** of their intention to start proceedings

3. I, the respondent, have taken genuine steps to resolve the dispute before filing the *Response to Initiating Application*: ☐ Yes ☐ No ☐ It is not safe to do so

Note: you must explain why it is not safe for you to comply with the pre-action procedures in the affidavit filed in support of your *Response to Initiating Application*.

4. I, the respondent, am seeking an exemption from either or both of (2) and (3) for the following reason/s: *(Tick all that apply)*

   ☐ There are allegations of child abuse or family violence or risk of child abuse or family violence

   ☐ My application is urgent

   ☐ A previous family law application has been filed by one of the parties in the last 12 months

Note: you must provide the factual basis for the exemption sought in the affidavit filed in support of your *Initiating Application* or *Response to Initiating Application*.

5. I agree with the contents of the *Genuine Steps Certificate* filed by the applicant: ☐ Yes ☐ No

Note: if you disagree with the contents of the *Genuine Steps Certificate* filed by the applicant, you must explain why in the affidavit filed in support of your *Response to Initiating Application*.

Part D Statement of Truth

I certify that the contents of this *Genuine Steps Certificate* are true and correct.

I acknowledge there may be consequences for any non-compliance with the pre-action procedures.

Signed

Date /12/2023

Signed by ☒ the applicant ☐ the respondent ☐ lawyer for the applicant/respondent